

**CV-25-012485 JACKSON, NICHOLAS TYLER vs TMOBILE USA INC -
Defendant T-Mobile USA, INC.'S Demurrer to Plaintiff's Second Amended
Complaint - SUSTAINED, unopposed, without leave to amend.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court exercises its discretion to consider Defendant's untimely filed demurrer in the absence of prejudice to Plaintiff. (Code of Civil Procedure §§ 430.40 and 473 (a)(1); Jackson v. Doe, (2011)192 Cal. App. 4th 742; McAllister v. Cnty. of Monterey, (2007)147 Cal. App. 4th 253). Additionally, the motion is unopposed. The Second Amended Complaint fails to allege sufficient facts in support of all three of the asserted causes of action for Arbitrary Refusal to Transact Business, Denial of Full and Equal Accommodations and Violation of Civil Rights/Interference. All said three causes of action rely on alleged violations of Civil Code §§ 51, 51.5 and or 51.2 which are insufficiently pled due to the lack of allegations as to discriminatory treatment tied to Plaintiff's protected status or characteristic. Therefore, these causes of action all fail as a matter of law. (Angelucci v. Century Supper Club (2007), 41 Cal.4th 160, modification denied; Harrison v. City of Rancho Mirage (2015), 243 Cal.App.4th 162). Allegations of comparator treatment of other non-Black customers also do not plead sufficient facts to allege discriminatory treatment by Defendant based on Plaintiff's protected characteristic beyond conclusory allegations. Accordingly, Defendant's Demurrer to the Second Amended Complaint is sustained as to all the asserted causes of action. (Code of Civil Procedure sections 430.10(e), 430.30(a)) Defendant's motion to strike portions of the Second Amended Complaint is moot in view of the Court's ruling on the demurrer herein. Defendant shall submit a Proposed Order within five (5) court days that complies with the Court's ruling. The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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CV-25-012485 - JACKSON, NICHOLAS TYLER vs TMOBILE USA INC - Defendant T-Mobile USA, INC.'S Demurrer to Plaintiff's Second Amended Complaint - SUSTAINED, unopposed, without leave to amend.

The Court exercises its discretion to consider Defendant's untimely filed demurrer in the absence of prejudice to Plaintiff. (Code of Civil Procedure §§ 430.40 and 473 (a)(1); Jackson v. Doe, (2011)192 Cal. App. 4th 742; McAllister v. Cnty. of Monterey, (2007)147 Cal. App. 4th 253). Additionally, the motion is unopposed.

The Second Amended Complaint fails to allege sufficient facts in support of all three of the asserted causes of action for Arbitrary Refusal to Transact Business, Denial of Full and Equal Accommodations and Violation of Civil Rights/Interference. All said three causes of action rely on alleged violations of Civil Code §§ 51, 51.5 and or 51.2 which are insufficiently pled due to the lack of allegations as to discriminatory treatment tied to Plaintiff's protected status or characteristic. Therefore, these causes of action all fail as a matter of law. (Angelucci v. Century Supper Club (2007), 41 Cal.4th 160, modification denied; Harrison v. City of Rancho Mirage (2015), 243 Cal.App.4th 162). Allegations of comparator treatment of other non-Black customers also do not plead sufficient facts to allege discriminatory treatment by Defendant based on Plaintiff's protected characteristic beyond conclusory allegations.

Accordingly, Defendant's Demurrer to the Second Amended Complaint is sustained as to all the asserted causes of action. (Code of Civil Procedure sections 430.10(e), 430.30(a))

Defendant's motion to strike portions of the Second Amended Complaint is moot in view of the Court's ruling on the demurrer herein.

Defendant shall submit a Proposed Order within five (5) court days that complies with the Court's ruling.

The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

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